



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 35709234

Date: JAN. 21, 2025

Appeal of Nebraska Service Center Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner, [REDACTED], seeks for the Beneficiary, an assistant vice president, employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Nebraska Service Center denied the petition, concluding that the Petitioner did not establish eligibility for a national interest waiver as it did not demonstrate the national importance of the proposed endeavor or that, on balance, it would be beneficial to the United States to waive the requirements of a job offer, and thus of a labor certification. The matter is now before us on appeal pursuant to 8 C.F.R. § 103.3.

The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). We review the questions in this matter *de novo*. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon *de novo* review, we will dismiss the appeal.

I. LAW

To qualify for the underlying EB-2 visa classification, a petitioner must establish they are an advanced degree professional or an individual of exceptional ability in the sciences, arts, or business. Section 203(b)(2)(A) of the Act.

If a petitioner establishes eligibility for the underlying EB-2 classification, they must then demonstrate that they merit a discretionary waiver of the job offer requirement “in the national interest.” Section 203(b)(2)(B)(i) of the Act. *Matter of Dhanasar*, 26 I&N Dec. 884, 889 (AAO 2016), provides the framework for adjudicating national interest waiver petitions. *Dhanasar* states that U.S. Citizenship and Immigration Services (USCIS) may, as matter of discretion,¹ grant a national interest waiver if the petitioner demonstrates that:

¹ *See Flores v. Garland*, 72 F.4th 85, 88 (5th Cir. 2023) (joining the Third, Ninth, Eleventh, and D.C. Circuit Courts of Appeals in concluding that USCIS’ decision to grant or deny a national interest waiver is discretionary in nature).

- The proposed endeavor has both substantial merit and national importance;
- The individual is well-positioned to advance their proposed endeavor; and
- On balance, waiving the job offer requirement would benefit the United States.

Id.

II. ANALYSIS

The Beneficiary is an assistant vice president at [REDACTED]. In this position, the Beneficiary endeavors to “use machine learning, deep learning, and advanced computing data processing and analysis techniques to build statistical models and reporting dashboards and corresponding model validation and risk management frameworks, to decrease and manage market risk and increase compliance with governing regulations that are critical to a stable financial system.”

In the denial decision, the Director determined the Beneficiary qualifies for the underlying EB-2 visa classification as an advanced degree professional. The Director also determined the Beneficiary demonstrated the substantial merit of the proposed endeavor but did not establish its national importance. The Director also found that, on balance, it would not be beneficial to the United States to waive the requirements of a job offer, and thus of a labor certification.

A. Substantial Merit and National Importance

The first *Dhanasar* prong, substantial merit and national importance, focuses on the specific endeavor that the individual proposes to undertake. *Matter of Dhanasar*, 26 I&N Dec. at 889. The endeavor’s merit may be demonstrated in a range of areas such as business, entrepreneurialism, science, technology, culture, health, or education. *Id.* In determining whether the proposed endeavor has national importance, we consider its potential prospective impact. *Id.* In *Dhanasar*, we noted that “we look for broader implications” of the proposed endeavor and that “[a]n undertaking may have national importance for example, because it has national or even global implications within a particular field.” *Id.* We also stated that “[a]n endeavor that has significant potential to employ U.S. workers or has other substantial positive economic effects, particularly in an economically depressed area, for instance, may well be understood to have national importance.” *Id.* at 890.

On appeal, the Petitioner asserts the Director erroneously misapplied the appropriate legal standard and disregarded key, probative evidence. Specifically, the Petitioner contends the Director erred in finding the endeavor would be of most benefit to the Beneficiary’s employer, as relevant policy does not state the endeavor must provide a greater benefit to the U.S. nationally than the Beneficiary’s employer. However, the Director did not give weight to the relative benefits to the Beneficiary’s employer compared to the United States. Rather, the Director acknowledged the Beneficiary’s employer “may benefit from their services,” then correctly focused on whether the Petitioner demonstrated whether “this benefit rises to the level of national importance. . . .” Similarly, the Petitioner contends the Director erroneously focused on the “specifically occupational classification” of the Beneficiary as an assistant vice president for [REDACTED] in finding “the petitioner did not submit documentary evidence to demonstrate his proposed endeavor as an Assistant Vice President with [REDACTED] will have a prospective impact at the national or global level in the future.” The Petitioner claims this focus on occupation led the Director

to “discount critical evidence that very clearly demonstrated the national importance of the [B]eneficiary’s proposed endeavor. However, the Director plainly notes in their decision that the “relevant question is not the importance of the field or profession in which the individual will work,” and “focuses on the specific endeavor that the [Beneficiary] proposes to undertake.” The Director correctly notes the Beneficiary’s proposed endeavor, in acting as an assistant vice president [REDACTED] includes work in “statistical models, reporting dashboards, and data visualization tools he develops using machine learning, deep learning, and advanced computing data processing, and analysis techniques [to] enhance [REDACTED] market risk management capability. . . .” The Petitioner also claims the Director’s decision is at odds with itself in finding the testimonial letters of record insufficient to demonstrate national importance while acknowledging the importance and great value of assistant vice presidents. Just as an endeavor can meet substantial merit without rising to the level of national importance, so can the Beneficiary’s work be recognized as important and valuable without meeting that *Dhanasar* standard. After review of the record, we concur with the Director that the Petitioner demonstrated the endeavor has substantial merit but that it does not rise to the level of national importance.

On appeal, the Petitioner asserts the Beneficiary’s endeavor includes “the design and implementation of statistical models, reporting dashboards, and model risk validation and management protocols that enhance market risk management capabilities through the integration of machine learning, deep learning, and advanced computing and data processing and analysis techniques.” The Petitioner contends this endeavor rises to the level of national importance because it will further U.S. technological capabilities with respect to critical and emerging technologies such as machine learning, deep learning, and advanced computing data processing and analysis techniques; contribute to sustained revenue generation that will benefit U.S. and global economy; and help preserve the stability and integrity of the financial services sector. We acknowledge the importance of the field of financial risk management, but the importance of the proposed endeavor is not evaluated by the importance of the profession in which he proposes to engage, but the specific potential prospective impact of the specific endeavor. *Dhanasar* at 889-890. Similarly, we recognize the value of critical and emerging technologies but merely working in an important field is insufficient to establish the national importance of a proposed endeavor. For example, classroom teaching activities in these technologies, by themselves, may have substantial merit but are not generally indicative themselves of impact on these field more broadly and would generally not establish their national importance. Here, the Petitioner has also not shown the Beneficiary’s proposed endeavor advances these critical and emerging technologies or has broader implications in the field.

The Petitioner asserts the Beneficiary’s employer, [REDACTED] plays a significant role due to “its approximately \$1.4 trillion in assets under management,” so that the Beneficiary’s endeavor is in the national interest “as it ensures [REDACTED] and the broader financial services industry. . . is able to appropriately anticipate and solve for potential sources of risk that could destabilize the U.S. economy before they occur.” Despite the size of the Beneficiary’s employer and the assets it manages, the Petitioner must demonstrate the Beneficiary’s own tasks rise to the level of nationally important endeavor. The Petitioner has not established that the Beneficiary’s endeavor alone has national implications within the field. The Petitioner also claims the Beneficiary’s innovations in machine learning, deep learning, and advanced computing data processing and analysis techniques have the potential to extend beyond his own employer. However, the national importance of these claimed innovations is not detailed, including the specific nature of such innovations and how they will impact the field at the requisite level.

The Petitioner characterized the Director's conclusions regarding the probative value of his letters of recommendation as "problematic," asserting the submitted letters constitute important testimonial evidence that must be considered. In addition, the Petitioner claims the Director failed to adhere to the preponderance of the evidence standard in reviewing the testimonial letters; the Petitioner asserts the Director did not acknowledge the significant economic, social, and technologic contributions of the Beneficiary's work. However, the Director thoroughly and properly considered the letters of record and cited to multiple letters in their decision. The Director acknowledged the letters provide details of the Beneficiary's proposed endeavor and state the Beneficiary "contribute[d] significant revenue to the U.S. economy. . . while simultaneously minimizing risk to American investors and to the stability of the U.S. financial sector as a whole." However, the Director determined testimonial letter references to the significant implications of the Beneficiary's endeavor did not provide specific examples or evidence that would establish that the endeavor would have such impact. We concur with the Director that the submitted letters contain broad, general assertions that the Beneficiary's work impacts the financial and technological sectors at large, but do not provide details of how his specific endeavor will impact the field at the level of national importance.

The Petitioner asserts the evidence demonstrates the Beneficiary's endeavor "will help to advance the U.S. interest in attracting and retaining STEM workers, which is critically important given the shortage of qualified workers in those fields." As stated by the Director, the alleged shortage of occupations or occupational skills does not render a proposed endeavor nationally important under the *Dhanasar* framework and such shortages are directly addressed by the U.S. Department of Labor through the labor certification process. Further, the Petitioner asserted the Beneficiary's "standing within the financial services industry allows it to contribute significant revenue annually to the U.S. economy" and will "stimulate demand for skilled labor." However, aside from these assertions alone, the Petitioner has not demonstrated the Beneficiary's endeavor as an assistant vice president has significant potential to employ U.S. workers or otherwise offer substantial positive economic effects, as contemplated by *Dhanasar*.

B. Additional *Dhanasar* Prongs

As our finding on this issue is dispositive of the Petitioner's appeal, we decline to reach and reserve whether the Petitioner has met the additional prongs of the *Dhanasar* framework. See *INS v. Bagamasbad*, 429 U.S. 24, 25 (1976) (stating that "courts and agencies are not required to make findings on issues the decision of which is unnecessary to the results they reach"); see also *Matter of L-A-C-*, 26 I&N Dec. 516, 526 n.7 (BIA 2015) (declining to reach alternative issues on appeal where an applicant is otherwise ineligible).

III. CONCLUSION

As the Petitioner has not met the requisite first prong of the *Dhanasar* analytical framework, we conclude the Petitioner has not demonstrated eligibility for or otherwise merits a national interest waiver as a matter of discretion.

ORDER: The appeal is dismissed.